

Not applicable for Virtual Office cases (Eg. Regus) and has to be on Stamp Paper as per State Stamp Act

WORK SPACE SHARING AGREEMENT

This Freelance Agreement is made at {Enter City, State} and effective this 1st Day of January, 2016

BETWEEN: Ltd. (the "First Party"), a Private Limited Company/Partnership Firm registered in India having its registered office at: , India.

➤ **the Party to the First part**

AND: M/s..... (the "Second Party") a Private Limited Company/Partnership Firm registered in India having its registered office at: , India.

➤ **the Party to the Second part**
(Collectively referred to as "Parties")

The parties mutually agreed to share common office premises and utilities to conduct their day to day business activities according to the terms of this agreement:

1) Premises for Work Space Sharing Purpose:

The first party and second party have entered into this Work Space Sharing Agreement to save on the costs and thereby benefit the parties to Share the benefits of savings. Below is the complete address of the Work Space to be shared by the Parties:

Pincode: ----- State: -----, India

2) Property:

The property includes all furniture, equipment, within the aforesaid premises. The parties may jointly or personally purchase and provide furniture, rugs, drapes, wall coverings, and other items of decor for all of the common areas of the offices, including staff working areas, waiting and reception rooms, conference rooms, file rooms and like areas, and halls. However, each of the parties shall provide his or her own office equipment for use of his or her staff, including but not limited to typewriters, adding machines, computers, printers, and like equipment. The parties shall agree on the type or types of filing cabinets to be used and on their color and each of the parties shall provide file cabinets for his or her own use and at his or her own expense. Each of the parties shall furnish his or her personal office at his or her own expense, provided that furniture and decoration shall meet commonly accepted professional standards for quality and appearance.

A library shall be jointly operated, and all books on the office premises shall be the property of the office. Library expenses shall be equally shared by all of the parties.

OR

Each party shall maintain his or her own ----- at his or her own expense. The use of ----- may be shared with the other parties, but will remain the exclusive property of the party purchasing same.

3) Accounts:

Each of the parties shall maintain his or her own general and trust accounts, receive and deposit his or her own fees and reimbursed expenses, and shall be professionally responsible for any escrow or trust funds of his or her clients.

The parties shall establish an office account and shall assess each of the parties each month for anticipated expenses. Upon execution of this agreement, each of the parties shall make a deposit in the firm account of approximately two months of operating expense.

Expenses shall be allocated to each of the parties, as follows:

- a. Space costs (rent, utilities, and lease-hold improvements, depreciation of commonly owned furniture, etc.) shall be allocated on the basis of the relative number of square feet of space occupied by each of the parties, including professional office, secretarial and file areas.
- b. The cost of occupancy for the reception area, waiting room, library, conference room, and hallways shall be shared equally by the parties.
- c. Library costs for books and services shall be shared equally.

- d. Receptionist payroll expense shall be shared equally.
- e. Other expenses, including supplies, telephone equipment charges, and like expenses shall be shared equally, unless the parties shall, from time to time, determine a different allocation.

4) Separateness:

In order to maintain their separate identities and to avoid the appearance of impropriety, the parties will each have their own letterhead, telephone lines, business cards, retainer agreements, yellow page advertising, etc. Any signs in front of or on the building and/or office door shall list each party separately.

5) Clients:

Each of the parties shall be responsible for the work done on behalf of his or her own clients. However, it is the intent of the parties to take advantage of their different areas of expertise, and they expect to work together on various matters/confer with each other on various matters.

When one party obtains the professional assistance of another party to this agreement, they shall enter into an arrangement with respect to division of fees, or failing any arrangement in advance, the assisting party shall be paid at the rate of Amount for each hour of work performed.

The parties shall advise their clients in advance in writing of any arrangements for assistance with other parties to this agreement. However, if the client objects to such association that party shall refrain from asking the assistance of another office sharer.

For purposes of avoiding conflicts of interest, the parties shall maintain a conflict of interest system and shall not take cases against clients of another party to this agreement.

6) Employees:

The parties may employ a common receptionist, and such other common employees as the parties shall, from time to time, determine. If the office employs an employee at salary, each of the parties shall make a contribution to his or her compensation and overhead expense in proportion to the total amount of time used by each of them, on the basis of time records maintained by the employee.

Each of the parties shall employ his or her own secretaries and assistants, and shall be responsible for their compensation, work, and behavior. If any employee of one party works for another party, the employee shall be paid for each hour at double the employee's average hourly rate/or whatever other equitable arrangement the parties want to make.

7) Withdrawal:

A party to this agreement who fails to pay an assessment for office expenses within 30 days of issuance, or who loses the right to carry out such business shall be deemed to have withdrawn from this office sharing arrangement. The remaining parties or party shall have the right to continue with the office sharing arrangement and to occupy the premises upon such withdrawal.

A withdrawing party shall remain financially responsible for the common obligations of the parties for leases, subscriptions, and other obligations, but shall not be responsible for on-going expenses such as common employees, telephone systems, newly purchased supplies, and the like. A withdrawing party shall have the right to take furniture, equipment, books, etc., personally belonging to the withdrawing party. The withdrawing party

shall be reimbursed for his or her share of the appraised value at the time of withdrawal of any commonly purchased and jointly owned furniture, equipment, books, etc.

8) Arbitration:

Any disagreement or dispute among the parties hereto involving or resulting from their business together shall be resolved only by final and binding arbitration under the Act and Rules then existing of the Arbitration and Conciliation Act, 1996.

For First Party,

{Enter M/s. FULL COMPANY NAME}

For Second Party,

Enter M/s. FULL COMPANY NAME}

.....

**Managing Director/Director/CEO
/Partner/Proprietor**

.....

**ManagingDirector/Director/CEO
Partner/Proprietor**

Witness:-

1) _____

S/o Mr.

Age:

Add:

Occ:

2).....

S/o Mr.

Age:

Add:

Occ:

Place: _____

Date: DD/MM/YYYY